

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #12	CCRB Case #: 202000772	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 01/27/2020 3:30 PM	Location of Incident: Myrtle Avenue and Knickerbocker Avenue	18 Mo. SOL 3/13/2022	Precinct: 83
Date/Time CV Reported Wed, 01/29/2020 3:54 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 01/29/2020 4:20 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Muhammad Raza	13382	963709	083 PCT
3. LCD David Poggioli	00000	939236	083 DET
4. POM Tyler Ryan	13099	961220	083 PCT
5. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Muhammad Raza	Abuse: Police Officer Muhammad Raza stopped § 87(2)(b)	A . Complainant Uncooperative
B . LCD David Poggioli	Abuse: Lieutenant David Poggioli stopped § 87(2)(b)	B . Complainant Uncooperative
C . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan stopped § 87(2)(b)	C . Complainant Uncooperative
D . POM Muhammad Raza	Abuse: Police Officer Muhammad Raza stopped § 87(2)(b)	D . Complainant Uncooperative
E . LCD David Poggioli	Abuse: Lieutenant David Poggioli stopped § 87(2)(b)	E . Complainant Uncooperative
F . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan stopped § 87(2)(b)	F . Complainant Uncooperative
G . Officers	Abuse: Officers drew their guns.	G . Complainant Uncooperative
H . Officers	Abuse: Officers drew their guns.	H . Complainant Uncooperative
I . Officers	Force: Officers used physical force against § 87(2)(b)	I . Complainant Uncooperative
J . Officers	Force: Officers used physical force against § 87(2)(b)	J . Complainant Uncooperative
K . An officer	Abuse: An officer damaged an individual's property.	K . Complainant Uncooperative
L . An officer	Force: An officer used a Taser against an individual.	L . Complainant Uncooperative
M . An officer	Force: An officer used physical force against an individual.	M . Complainant Uncooperative

Case Summary

On January 29, 2020, § 87(2)(b) filed this complaint in person at the 81st Precinct stationhouse on behalf of her 14-year-old son § 87(2)(b) and her § 87(2)(b)-old son, § 87(2)(b). § 87(2)(b) was not a witness to any portion of this incident. § 87(2)(b) stated that one of the juveniles who was with her children was pushed off his bicycle by officers, an officer damaged a juvenile's cellphone, and an officer used a Taser against one of the children. § 87(2)(b) did not know who those individuals were as she stated they attended different schools from her sons.

The CCRB was unable to request BWC video footage for this incident as the footage would require signed unsealing orders to obtain as the individuals involved are juveniles.

On February 4, 2020, the undersigned scheduled an appointment with § 87(2)(b) for her to bring § 87(2)(b) and § 87(2)(b) to the CCRB for interviews on February 11, 2020. On February 10, 2020, a text message reminder of her appointment was sent to § 87(2)(b). § 87(2)(b) missed her appointment on February 11, 2020 without calling ahead to cancel or reschedule.

From February 12, 2020 to February 20, 2020, the undersigned left three voicemails for § 87(2)(b) asking her to call the undersigned back. On February 25, 2020 and March 2, 2020, the undersigned called § 87(2)(b) but an automated message stated that at the subscriber's request, the number was not accepting incoming messages. On March 11, 2020, the undersigned called § 87(2)(b) and the number was out of service.

From February 19, 2020 to March 9, 2020, three please call letters were mailed to § 87(2)(b). None of these letters have been returned by the US Postal Service.

A New York City DOC search conducted on March 23, 2020 revealed that § 87(2)(b) is not currently incarcerated.

§ 87(2)(g)

§ 87(2)(b) it is recommended that this case be closed as **complainant uncooperative**.

Squad No.: 12

Investigator:	<u>Ella Mintz</u>	<u>Inv. Ella Mintz</u>	<u>4.1.20</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Carlmais Johnson</u>	<u>IM Carlmais Johnson</u>	<u>April 1, 2020</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date